

Criminal Law I | Transitioning from IPC to BNS

CHAPTER XX OFFENCES RELATING TO MARRIAGE

IPC 493-498 | BNS 81-84 | Constitutional status of IPC 497

This chapter covers IPC Sections 493-498 and their subject-matter correspondences in BNS Sections 81-84. It distinguishes deceit about an existing lawful marriage, bigamy, concealment of a former marriage, a fraudulent ceremony and taking, enticing, concealing or detaining a married woman with the specified intent. IPC 497 is retained for historical and constitutional study, with its invalidation clearly identified.

Study edition: 5 October 2026. Course position 22. Six IPC entries, five correspondences and eight self-check questions. Notes summarise the cited central enactments for legal education.

Contents

[Objectives and transition](#)

[IPC-to-BNS comparison](#)

[Ingredients and practical application](#)

[Revision and exam method](#)

[Practice questions and model answers](#)

[Official sources](#)

Objectives and transition

- Identify all six IPC entries and the relevant BNS section or constitutional status.
- Distinguish belief in an existing lawful marriage from a promise of future marriage.
- Apply the elements of bigamy, concealment and the statutory exceptions.
- Distinguish a knowingly fraudulent ceremony from a merely invalid marriage.
- Explain Joseph Shine and the absence of a BNS adultery counterpart.
- Analyse BNS 84 using its act, knowledge and intent requirements.

The relevant BNS provisions commenced on 1 July 2024. Select the substantive law by the date and nature of conduct, BNS 358 repeal-and-savings rules and Article 20(1) of the Constitution; complaint timing alone does not decide the applicable offence or penalty. These marriage offences are reorganised within BNS Chapter V, concerning offences against women and children. IPC Chapter XX is retained as the course heading. IPC 497 was already struck down in 2018: do not confuse constitutional invalidation with the later general repeal of IPC. This chapter ends at IPC 498; cruelty under IPC 498A belongs to the separate Chapter XXA.

IPC-to-BNS comparison

Five IPC entries correspond to four BNS sections because IPC 494 and 495 are consolidated in subsections 82(1) and 82(2). IPC 497 has no BNS counterpart. These notes summarise the cited central texts; the validity of a marriage must be established under the applicable marriage law.

IPC 493. Cohabitation caused by a man deceitfully inducing a belief of lawful marriage

BNS reference: 81

The man must by deceit cause a woman not lawfully married to him to believe that she is lawfully married to him, and she must cohabit or have sexual intercourse with him in that belief. Link the deceit, belief and resulting conduct. A promise to marry in the future is different from inducing belief that a lawful marriage already exists. BNS punishment: imprisonment of either description up to ten years and liability to fine.

IPC 494. Marrying again during the lifetime of husband or wife

BNS reference: 82(1)

The accused must have a living husband or wife and contract a further marriage that is void because it occurs during that spouse's lifetime. Establish the first marriage, its subsistence and the subsequent marriage under the applicable marriage law. Cohabitation or a bare allegation of marriage does not replace the required proof. Punishment: imprisonment of either description up to seven years and liability to fine. The exception covers a former marriage declared void by a competent court, or a spouse continuously absent for seven years and not heard of as alive during that time, provided the known real facts are disclosed to the new spouse before the subsequent marriage. Mere separation or a pending divorce petition is not itself a dissolution.

IPC 495. Bigamy with concealment of the former marriage

BNS reference: 82(2)

This is the aggravated form of the offence under BNS 82(1), where the fact of the former marriage is concealed from the person with whom the subsequent marriage is contracted. Prove the underlying bigamy offence and the concealment; concealment alone does not dispense with the other ingredients. Punishment: imprisonment of either description up to ten years and liability to fine. Disclosure of an existing marriage alone does not make an otherwise prohibited second marriage lawful.

IPC 496. Marriage ceremony fraudulently gone through without lawful marriage

BNS reference: 83

The accused must dishonestly or with fraudulent intention go through a marriage ceremony while knowing that it does not thereby create a lawful marriage. A ceremony, knowledge and the prescribed dishonest or fraudulent state of mind are essential. An invalid marriage caused by a genuine mistake is not automatically this offence. Unlike BNS 81, this section focuses on the knowingly fraudulent ceremony rather than the woman's induced belief followed by cohabitation or intercourse. Punishment: imprisonment of either description up to seven years and liability to fine.

IPC 497. Adultery: historical provision and constitutional status

BNS reference: No BNS counterpart - unconstitutional IPC provision

The Supreme Court in *Joseph Shine v. Union of India*, decided on 27 September 2018, struck down IPC 497 as unconstitutional. The judgment also invalidated the related CrPC 198 rule to the extent it concerned prosecution for adultery. Do not present the former IPC penalty as an enforceable criminal punishment. BNS contains no corresponding adultery offence. Adultery may still have matrimonial consequences under the applicable law; decriminalisation does not decide every civil or service-law question. It does not remove the ingredients of separate offences involving deceit, coercion or bigamy.

IPC 498. Enticing, taking away or detaining with criminal intent a married woman

BNS reference: 84

BNS 84 covers taking or enticing away a woman known or reasonably believed to be another man's wife with intent that she have illicit intercourse with any person, and concealing or detaining such a woman with that intent. Prove the relevant act, marital-status knowledge or reason to believe, and specified intent. Unlike IPC 498, the BNS text does not retain the express words requiring taking or enticing from the husband or a person having care of her on his behalf. Punishment: imprisonment of either description up to two years, or fine, or both. This is not a replacement adultery offence: suspicion of a relationship does not alone prove every element. Assess the woman's autonomy and the actual conduct without treating her as property.

Ingredients and practical application

Deceit and belief (81): identify the representation that a lawful marriage already exists, its falsity, the resulting belief and cohabitation or intercourse in that belief. An unfulfilled future promise requires a different analysis and must not be mechanically labelled an offence under 81.

Bigamy (82): establish a valid subsisting first marriage and the subsequent marriage in the legally required manner. Identify why the latter is void owing to the living spouse. Check competent-court orders, dates and the applicable marriage law rather than assuming every second relationship is a second marriage.

Seven-year absence exception: continuous absence, no news of being alive during that period, and disclosure of the known facts to the new spouse before marriage must be considered together. Mere non-contact for a short period is insufficient. Do not treat this exception as a general licence based only on a missing-person report.

Fraudulent ceremony (83): an unlawful result alone is insufficient. The section expressly requires a ceremony, knowledge that lawful marriage does not result, and dishonesty or fraudulent intention.

Constitutional distinction: Joseph Shine protects equality, dignity and sexual autonomy against the former adultery offence. Matrimonial relief and independently proved criminal offences are different questions. BNS 84 must be assessed on its own words, not used to assume criminality merely because a married woman forms a relationship.

Evidence for a problem answer: identify the applicable marriage law, proof of required ceremonies or formalities, any dissolution or nullity order, disclosure or concealment, communications explaining the alleged deceit and the conduct alleged. These are analytical prompts, not a substitute for the statutory burden of proof.

Revision and exam method

- IPC 493 -> BNS 81: deceit causing belief in an existing lawful marriage and resulting cohabitation or intercourse.
- IPC 494 -> BNS 82(1): bigamy; maximum seven years and fine, subject to the statutory exception.
- IPC 495 -> BNS 82(2): underlying bigamy plus concealment; maximum ten years and fine.
- IPC 496 -> BNS 83: knowingly fraudulent or dishonest marriage ceremony; maximum seven years and fine.
- IPC 497: struck down in Joseph Shine on 27 September 2018; no BNS adultery counterpart.
- IPC 498 -> BNS 84: specified taking, enticing, concealment or detention with the statutory knowledge and intent; maximum two years or fine or both.
- Disclosure alone does not validate a prohibited second marriage; apply the complete exception.
- A failed marriage, relationship or promise is not automatically proof of a criminal offence.

Start with the conduct date and applicable statute. Identify the precise representation, marriage, ceremony or taking/enticing/concealment/detention. Prove every required mental element and causal link. For bigamy, establish both marriages under the applicable law and test the statutory exception. For adultery, state the constitutional holding and absence of a BNS counterpart rather than reproducing the former offence as current law. End with the correct subsection and punishment.

Practice questions and model answers

Self-check study exercises; not a timed or graded assessment.

1. A man deceitfully induces a woman to believe they are already lawfully married, and she cohabits with him in that belief. Which provision applies?

Model answer: Analyse BNS 81 (formerly IPC 493). Prove deceit, absence of lawful marriage, the induced belief and cohabitation or intercourse in that belief. The maximum imprisonment is ten years with liability to fine.

2. Does living together with a second partner automatically prove bigamy?

Model answer: No. BNS 82(1) requires a subsequent marriage void because of a living spouse. Establish the subsisting first marriage and legally relevant proof of the second under the applicable marriage law.

3. A spouse has been absent for seven years. Is that fact alone sufficient for the exception?

Model answer: No. Examine continuous absence, whether the person heard of the spouse as alive within that time, and disclosure of known real facts to the new spouse before the subsequent marriage.

4. What does concealment add under BNS 82(2)?

Model answer: It aggravates an established offence under 82(1) where the former marriage is concealed from the new spouse. The maximum rises from seven to ten years, with liability to fine. Concealment does not replace proof of the underlying offence.

5. An invalid ceremony occurred through an honest misunderstanding. Is BNS 83 automatically established?

Model answer: No. The statutory knowledge and dishonest or fraudulent intention must be proved. Invalidity by itself is insufficient.

6. Can IPC 497 be treated as an operative offence with a new BNS number?

Model answer: No. Joseph Shine struck it down in 2018, and BNS contains no adultery counterpart. Separate matrimonial consequences or other offences require their own legal analysis.

7. How does BNS 84 differ from simply alleging an adulterous relationship?

Model answer: It requires a specified act of taking, enticing, concealing or detaining, the required knowledge or reason to believe about marriage, and the stated intent. An allegation of a relationship alone is not proof of all those elements.

8. Is a promise to marry next year the same as deceit that a lawful marriage already exists?

Model answer: No. BNS 81 concerns belief in an existing lawful marriage followed by cohabitation or intercourse in that belief. Other allegations require independent analysis under any separately applicable provision.

Official sources

BNS 2023 - official Gazette, Sections 81-84 (printed pages 28-29)

[Open official source](#)

Historical IPC - Chapter XX, Sections 493-498

[Open official source](#)

Joseph Shine v. Union of India, 27 September 2018, [2018] 11 SCR 765 - official court-hosted judgment

[Open official source](#)

BNS commencement notification S.O. 850(E), 23 February 2024

[Open official source](#)

Read the full applicable statutory text for a live matter. The invalidation of IPC 497 is distinct from the 2024 IPC repeal-and-savings framework. The examples are teaching illustrations, not reported judgments.